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OF COLORADO

**DIVISION OF MINERALS AND GEOLOGY**  
Department of Natural Resources

1313 Sherman St., Room 215  
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DEPARTMENT OF  
**NATURAL  
RESOURCES**

Roy Romer  
Governor

James S. Lockhead  
Executive Director

Michael B. Long  
Division Director

December 14, 1994

Mr. John Lohr  
Southwestern Portland Cement  
P.O. Box 529  
Lyons, CO 80540

Re: Dowe Flats Mine, Revision Approval, Permit No. M-93-041, Revision No.  
AM-001

Dear Mr. Lohr:

On December 8, 1994 the Colorado Mined Land Reclamation Board conditionally approved the amendment application submitted to the Division on August 31, 1994, addressing the change in the reclamation plan. The terms of the AM No. 001 approved by the Board are hereby incorporated into Permit No. M-93-041.

The conditions of the Board approval are noted below. Please note that all other provisions of Permit No. M-93-041 remain in full force and effect.

Stipulation No. 01

PRIOR TO BLASTING, THE OPERATOR WILL PROVIDE A COMMITMENT TO THE DIVISION WHICH STATES THAT COUNTY ROAD 47 WILL BE CLOSED PRIOR AND DURING ANY BLASTS WITHIN A SPECIFIED DISTANCE FROM THE ROAD.

Stipulation No. 02

ALL STIPULATIONS OF THE ORIGINAL PERMIT APPLICATION APPROVAL DATED MARCH 3, 1994 ARE CONDITIONS OF THIS AMENDMENT APPROVAL.

Stipulation No. 03

ALL REQUIRED PERMITS ARE OBTAINED FROM THE OFFICE OF THE STATE ENGINEER PRIOR TO EXPOSING GROUND WATER AND A FINANCIAL WARRANTY BE POSTED TO COVER BACKFILLING OF THE PITS TO AN ELEVATION NECESSARY TO COVER THE GROUND WATER TABLE.

The Division is calculating a reclamation bond for this site.

John Lohr

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December 14, 1994

If you have any questions, please contact me.

Sincerely,

A handwritten signature in dark ink, appearing to read "William C. York-Feirn". The signature is fluid and cursive, with a long horizontal stroke extending to the right.

William C. York-Feirn  
Environmental Protection Specialist

WCY/amm

cc: Paul Banks, AGRA Earth and Environmental, Inc.  
Bob Freeman, Town of Lyons

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